

IN THE **COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT**
IN AND FOR **MANATEE COUNTY, FLORIDA**

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

vs.

Case No. 2024-CC-002691

KALMAN HARTIG and ANY UNKNOWN
TENANT(s)
Defendants.

ORDER ON PENDING MOTIONS

THIS CAUSE came on to be heard on March 11, 2025 on Defendant's Motion to Continue Trial, for Jury Trial, for Summary Judgment and for Production from Plaintiff in the above styled cause, and the Court having considered the Motion, having taken testimony and being otherwise advised in the premises, does hereby make the following findings and orders:

1. The Plaintiff filed its complaint against the Defendants on August 7, 2024;
2. Defendant KALMAN HARTIG, by and through counsel, answered the complaint on or about August 22, 2024, and did not demand a jury trial at that time;
3. On October 21, 2024, the Plaintiff filed a motion for order to require the Defendant to pay accrued and accrued rent into the registry of the Court pursuant to Fla. Stat. §723.063 and its reply to the affirmative defenses of the Defendant KALMAN HARTIG;
4. A hearing was conducted on the Motion to Require the Defendant to pay rent into the Registry of the Court on February 2, 2025, which order was rendered by the Honorable Renee Inman on February 3, 2025;
5. On February 4, 2025, this Court entered a non-jury trial order for April 9, 2025

commencing at 1:30 PM.

6. On February 10, 2025, the Defendant *pro se* filed a motion for a jury trial.
7. As of this date, based upon its review of the Court docket, the court finds that the Defendant has complied with the Court's order for payment of accrued and accruing rent into the registry of the Court.

In considering the Defendant's Motion for Trial by Jury & Objection to Order for Non-Jury Trial, the court is mindful of Fla. R. Civ. P. 1.430(b) and the recent case of *Pulles v. Onorato*, 2024 Fla. App. LEXIS 9377. In this judicial assessment of an untimely (post Fla. R. Civ. P. 1.430(b)) demand for jury trial, the court evaluates the Defendant's motion and the Plaintiff's opposition to the Motion in light of the following passages in *Pulles*:

Florida Rule of Civil Procedure 1.430(b) provides for the manner and timing within which a party may demand a jury trial:

Demand. Any party may demand a trial by jury of any issue triable of right by a jury by serving upon the other party a demand therefor in writing at any time after commencement of the action and not later than 10 days after the service of the last pleading directed to such issue. The demand may be indorsed upon a pleading of the party.

Relatedly, subdivision (e) provides:

Waiver. A party who fails to serve a demand as required by this rule [*2] waives trial by jury. If waived, a jury trial may not be granted without the consent of the parties, but the court may allow an amendment in the proceedings to demand a trial by jury or order a trial by jury on its own motion. A demand for trial by jury may not be withdrawn without the consent of the parties.

Under the rule, the trial court has the discretion to grant a late-filed demand for a jury trial where the moving party meets its burden of demonstrating that it would "impose neither an injustice upon the adversary nor an unreasonable inconvenience upon the court in the performance of its duties." *Herrera v. Wec Care of Flagler Cnty., Inc.*, 615 So. 2d 223, 224 (Fla. 5th DCA 1993) (cited with approval by this court in *Allstate Ins. Co. v. Hidalgo*, 753 So. 2d 652 (Fla. 3d DCA 2000)). The court's discretion in this regard has been described as "exceedingly broad." *Id.* (quoting *Shores v. Murphy*, 88 So. 2d 294, 296 (Fla. 1956)). In addition, there is a presumption in favor of the trial court's determination when reviewing a trial court's

denial of a late-filed demand for jury trial. "For this court to overthrow it, the appellant must show that it is clearly erroneous." Wertman v. Tipping, 166 So. 2d 666, 667 (Fla. 1st DCA 1964).

The Court weighs the claims that granting a late filed demand for a jury trial impose an injustice on an adversary or unreasonable inconvenience, extend the time in litigating the case, and further burden the trial court's docket, and the posture of this case. The court considers it important that this is a case which is subject to summary procedures pursuant to Fla. Stat. 5.111, the fact that discovery has been performed, the absence of evidence of injustice proven by the Defendant, and the burden arising out of the inability/inconvenience/expense arising out of there being no jury already called for the trial date already scheduled for April 9, 2025 at 1:30 PM.

Based upon these reasons, the Defendant's motion for a jury trial is denied.

Defendant further has moved to continue the trial in the above styled cause. The complaint filed in this cause is based upon conduct occurring over nearly one year ago; this summary procedure case has been pending since August 7, 2024, and each party has conducted such discovery as it has requested. The Rules of Civil Procedure discourage continuances that are not agreed upon by both parties (Fla. R. Civ. P. ~~Fla. R. Civ. P. 1.460~~ (2025)).

The Motion to continue is denied without prejudice.

As to the Defendant's motion for production of records of violations of park rule communications including notices of termination as to lots 93,98,218, 66 and 182 from the year 2021 to present, the Plaintiff has consented and will supply such records on or before March 24, 2025. Therefore, the Court **GRANTS** Defendant's Motion for Production of Records.

The Court finds there is no factual or legal basis for the Defendant's motion for cease or desist order and same is denied.

Based upon the failure of the Defendant to procedurally or factually support its motion, the

motion for summary judgment pursuant to Fla. R. Civ. P. 1.510 is denied.

Parties shall exchange Exhibits and Witness Lists 10 days Prior to Trial.

Pursuant to Rule 2.516(h)(1), the Court hereby orders the moving party to furnish copies of this Order/Judgment to any party who does not have an email address shown on this document within 10 days.

DONE AND ORDERED at in the Manatee County Judicial Center, Bradenton, Manatee County, Florida, this _____ day of March, 2025.



eSigned by HEATHER DOYLE, County Judge 03/14/2025 13:14:59 34Xy5hU...

HEATHER DOYLE
COUNTY JUDGE

Copies:

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